



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session
Majority Research Staff

[HB 2557](#): candidate petitions; felony disclosure

WILLOUGHBY FLOOR AMENDMENT

1. Changes the deadline from seven *calendar* days to seven *business* days.

WILLOUGHBY FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2557
(Reference to JUDICIARY S/E Committee amendment)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Strike everything after the enacting clause and insert:

3 "Section 1. Section 12-2293, Arizona Revised Statutes, is amended
4 to read:

5 12-2293. Release of medical records and payment records to
6 patients and health care decision makers;
7 definition

8 A. Except as provided in subsections B and C of this section, on
9 the written request of a patient or the patient's health care decision
10 maker for access to or copies of the patient's medical records and payment
11 records, the health care provider in possession of the MEDICAL RECORD OR
12 PAYMENT record shall provide access to or copies of the MEDICAL RECORDS OR
13 PAYMENT records to the patient or the patient's health care decision maker
14 PROMPTLY AND WITHIN NOT MORE THAN SEVEN [~~CALENDAR~~] [BUSINESS] DAYS.

15 B. A health care provider may deny a request for access to or
16 copies of medical records or payment records if a health professional
17 determines that either:

18 1. Access by the patient is reasonably likely to endanger the life
19 or physical safety of the patient or another person.

20 2. The MEDICAL RECORDS OR PAYMENT records make reference to a
21 person other than a health professional and access by the patient or the
22 patient's health care decision maker is reasonably likely to cause
23 substantial harm to that other person.

24 3. Access by the patient's health care decision maker is reasonably
25 likely to cause substantial harm to the patient or another person.

26 4. Access by the patient or the patient's health care decision
27 maker would reveal information obtained under a promise of confidentiality
28 with someone other than a health professional and access would be
29 reasonably likely to reveal the source of the information.

1 C. A health care provider may deny a request for access to or
2 copies of medical records or payment records if the health care provider
3 determines that either:

4 1. The information was created or obtained in the course of
5 clinical research and the patient or the patient's health care decision
6 maker agreed to the denial of access when consenting to participate in the
7 research and was informed that the right of access will be reinstated on
8 completion of the research.

9 2. A health care provider is a correctional institution or is
10 acting under the direction of a correctional institution and access by a
11 patient who is an inmate in the correctional institution would jeopardize
12 the health, safety, security, custody or rehabilitation of the patient or
13 other inmates or the safety of any officer, employee or other person at
14 the correctional institution or of a person who is responsible for
15 transporting the inmate.

16 D. If the health care provider denies a request for access to or
17 copies of the medical records or payment records, the health care provider
18 must note this determination in the patient's records and provide to the
19 patient or the patient's health care decision maker a written explanation
20 of the reason for the denial of access. The health care provider must
21 release the medical records or payment records information for which there
22 is not a basis to deny access under subsection B of this section.

23 E. For the purposes of this section, "health professional" has the
24 same meaning prescribed in section 32-3201."

25 Enroll and engross to conform

26 Amend title to conform

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